

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Circuit Judge David M. Ebel**

Date: August 16, 2012

Deputy Clerk: Kathy Preuitt-Parks

Court Reporter: Gwen Daniel and Kara Spitler

Civil Action No.: 11-cv-01934-DME-BNB

JEFFREY A. BOARDMAN,

James Francis Fosnaught
Sander N. Karp

v.

AMERICAN FAMILY MUTUAL INSURANCE
COMPANY, a Wisconsin corporation,

Heather A. Salg

Defendant.

COURTROOM MINUTES

Jury Trial Day 4

9:13 a.m. Court in session.

Court calls case. Counsel and parties present.

Jury not present.

Preliminary remarks by the Court.

9:17 a.m. Jurors are present.

9:23 a.m. Closing argument by Mr. Fosnaught.

9:48 a.m. Closing argument by Ms. Salg.

10:10 a.m. Rebuttal closing argument by Mr. Fosnaught.

10:15 a.m. Jury instructions read.

10:31 a.m. Court Security Officer sworn.

10:32 a.m. Bench conference.

10:33 a.m. Jurors excused to begin deliberations.

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10:40 a.m. COURT IN RECESS

11:00 a.m. Court Security Officer Gary Osborne sworn.

11:30 a.m. Court Security Officer Katherine Maestas sworn.

12:30 p.m. Court Security Officer Terry Simmons sworn.

2:10 a.m. Court Security Officer advises the jurors have reached a verdict.

2:34 p.m. COURT IN SESSION

2:36 p.m. Jurors are present.

Court receives, reviews and publishes the verdict. Pursuant to General Order 2007-3, the original Jury Verdict has been filed conventionally by delivery to the Clerk's Office. A representation of the Jury Verdict is attached to the court minutes.

Jurors are polled at the request of the defendant.

Jurors are advised of the Court's rules regarding communicating with counsel.

2:43 p.m. Jurors are thanked for their service and dismissed.

2:45 p.m. COURT IN RECESS

Total in court time: 98 minutes

Hearing concluded